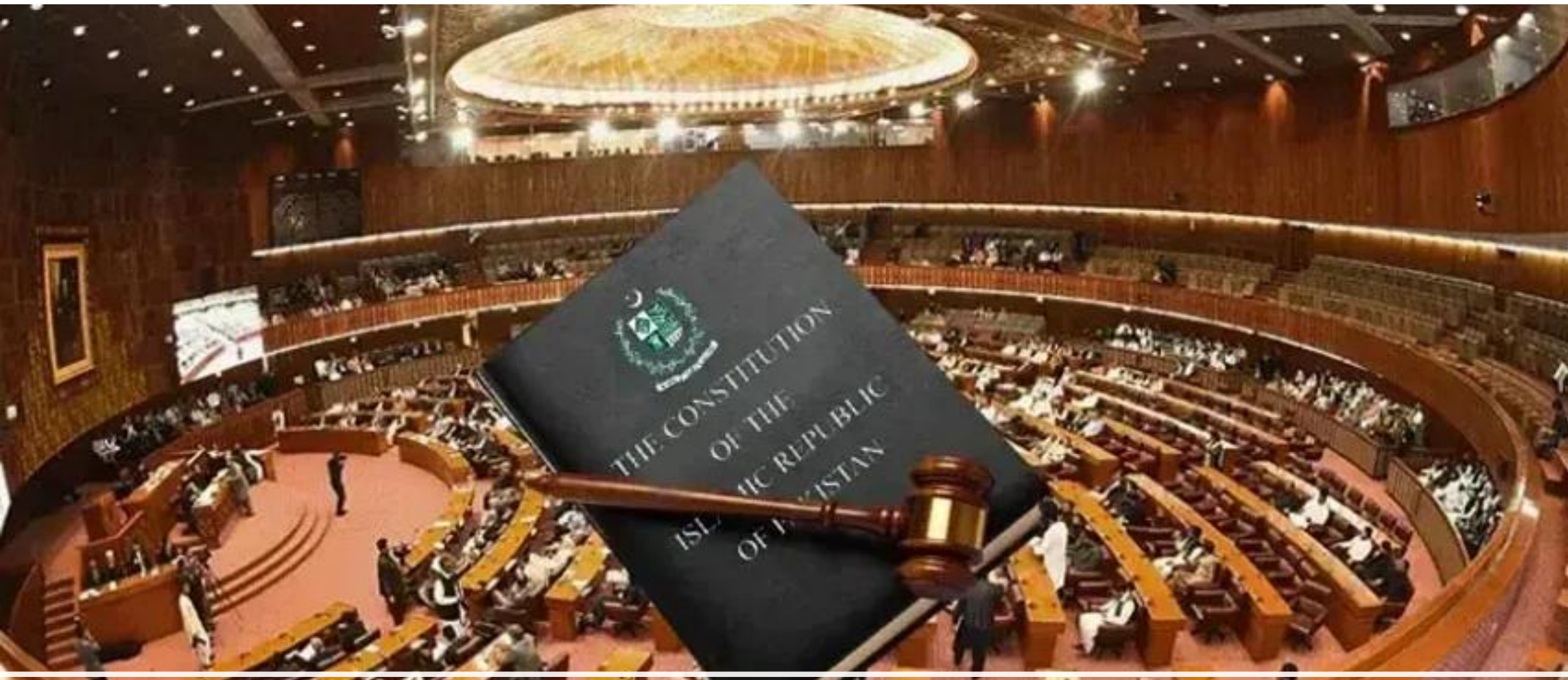




The 27th Amendment in the Constitution

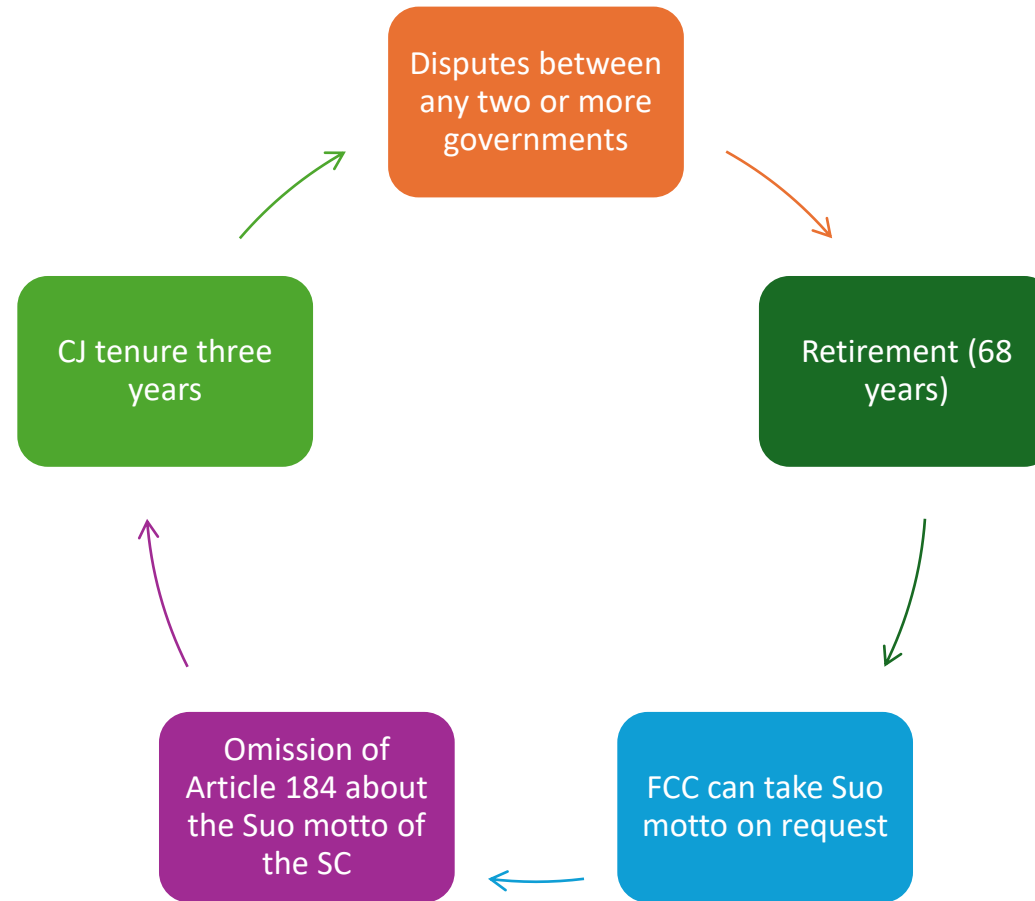
Establishment of the Federal Constitutional Court

Chief Justice

Appointed by the
President

An equal number
of judges from
each province

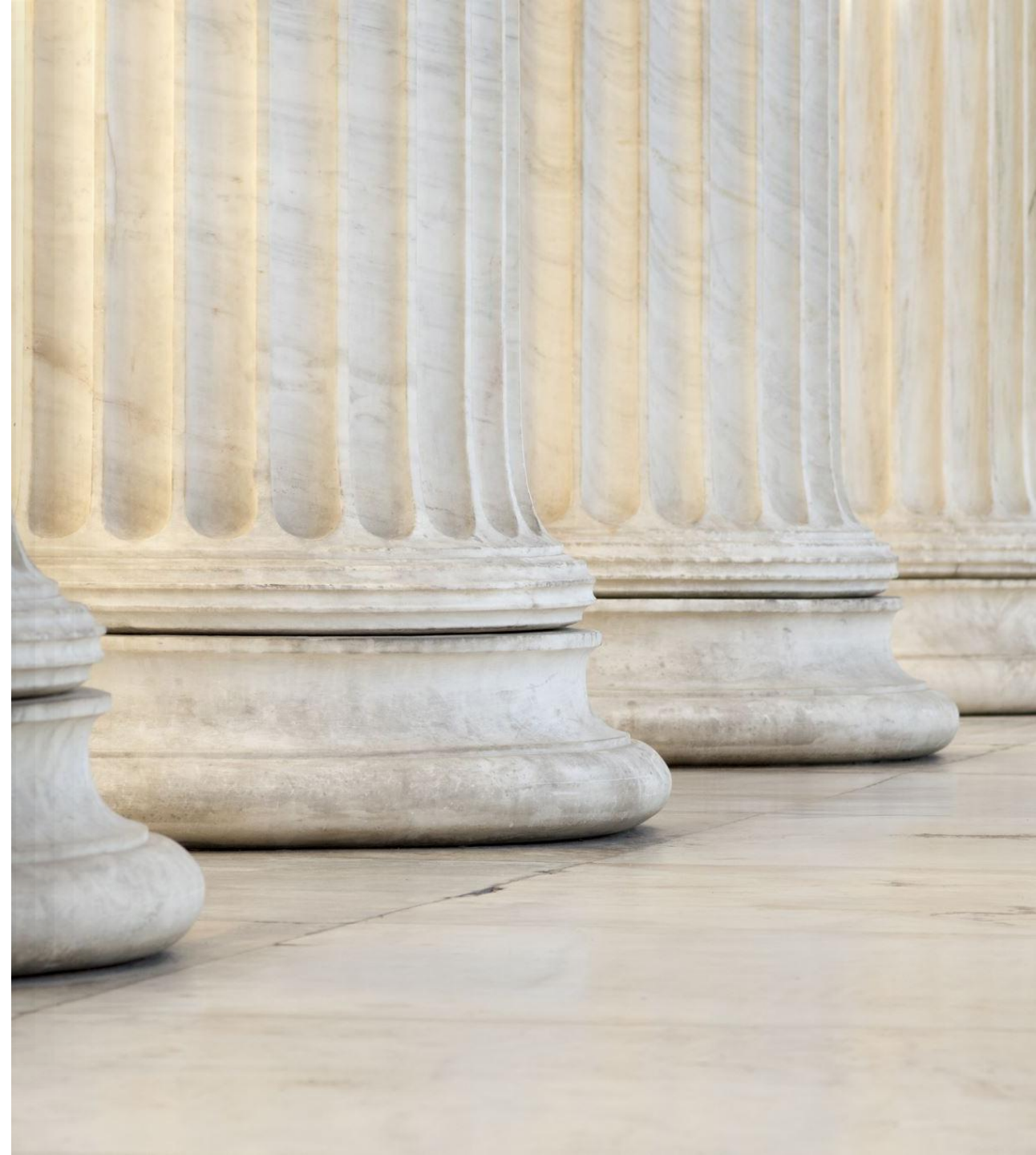
Functions of the Federal Constitutional Court



Power of the Federal Constitutional Court

Decisions of the Federal Constitutional Court and the Supreme Court are binding on other courts:

- (1) Any decision of the Federal Constitutional Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan, including the Supreme Court.
- (2) Any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan except the Federal Constitutional Court.



Article 200 of the Constitution

Transfer of High Court Judges.- (1) The President may transfer a Judge of a High Court from one High Court to another High Court on the recommendation of and on such terms and conditions as may be determined by the Judicial Commission of Pakistan, as mentioned in clause (2) of Article 175A.

A Judge of a High Court who does not accept a transfer under this Article shall be deemed to have retired from his office.



Amendment of Article 243 of the Constitution

The President shall, on advice of the Prime Minister, appoint-

- (a) The **Chief of the Army Staff** concurrently the **Chief of the Defense Forces**;
- (b) the **Chief of the Naval Staff**; and
- (c) the **Chief of the Air Staff**; and shall also determine their salaries and allowances.

Continue...

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- Where the Federal Government promotes a member of the Armed Forces to the rank of Field Marshal, Marshal of the Air Force, or Admiral of the Fleet, such officer shall retain the rank, privileges, and remain in uniform for life.
 - Field Marshal, Marshal of the Air Force, and Admiral of the Fleet, being national heroes, shall not be removed from office except on the ground or charges and in the manner provided under Article 47.
-

Amendment of Article 248 of the Constitution

- No criminal proceedings whatsoever shall be initiated or continued against the President for his life and for a Governor during his term of office in any court.
- No process for arrest or imprisonment of the President for his life and for a Governor during his term of office, shall be issued from any court.

Resignation of Judges in the Wake of the 27th Amendment

01

1. Justice Syed
Mansoor Ali Shah
(Supreme Court)

02

2. Justice Athar
Minallah (Supreme
Court)

03

3. Justice Shams
Mahmood Mirza
(Lahore High
Court)